

TEXAS ADMINISTRATIVE CODE: As in effect on 5/11/2026.

TITLE 16. ECONOMIC REGULATION

PART 4. TEXAS DEPARTMENT OF LICENSING AND REGULATION

CHAPTER 83. BARBERS AND COSMETOLOGISTS

§83.114. Health and Safety Standards--Establishments and Schools.

- (a) Establishments and schools must keep the floors, walls, ceilings, shelves, furniture, furnishings, and fixtures clean and in good repair. Any cracks, holes, or other similar disrepair not readily accessible for cleaning must be repaired or filled in to create a smooth, washable surface.
- (b) All floors in areas where services under the Act are performed, including restrooms and areas where chemicals are mixed or where water may splash, must be of a material which is not porous or absorbent and is easily washable, except that anti-slip applications or plastic floor coverings may be used for safety reasons. Carpet is permitted in all other areas.
- (c) Plumbing fixtures, including toilets and wash basins, must be kept clean. They must be free from cracks and similar disrepair that cannot be readily accessible for cleaning.
- (d) Each establishment and school must have suitable plumbing that provides an adequate and readily available supply of hot and cold running water at all times and that is connected for drainage of sewage and potable water within the areas where work is performed and supplies dispensed.
- (e) Every establishment and school must provide at least one restroom located on or near the licensed premises. For public safety, chemical supplies may not be stored in the restroom.
- (f) Food or beverages may not be prepared on licensed premises for sale. Pre-packaged food or beverages may be sold to or consumed by clients.
- (g) For public health and safety, licensed premises must eliminate any strong odors through adequate ventilation, including but not limited to, exhaust fans and air filtration to exhaust chemicals and fumes away from the public area and to provide for the input of fresh air.

(h) Licensed premises may not be utilized for living or sleeping purposes, or any other purpose that would tend to make the premises unsanitary, unsafe, or endanger the health and safety of the public. An establishment or school that is attached to a residence must have an entrance that is separate and distinct from the residential entrance. Any door between a residence and a licensed facility must be closed during business hours.

(i) Only service animals are allowed in establishments and schools. Covered aquariums are allowed provided that they are maintained in a sanitary condition.